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**UNITED STATES DISTRICT COURT
DISTRICT OF UTAH**

MICHAEL ANTHONY ROY, Plaintiff, vs. DOUG HOWELL, SHAUN LOTT, ZAC ROBINSON, BRANDON JOHNSON, UTAH COUNTY, AMERICAN FORK CITY, SPANISH FORK CITY; and JOHN AND JANE DOES 1-10, Defendants.	COMPLAINT & Jury Demand Civil No. _____ Judge _____
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Michael Anthony Roy (Roy), through counsel, complains against Defendants as follows:

PRELIMINARY STATEMENT

This is a civil rights action in which Roy seeks relief for Defendants' violation of his rights guaranteed by the United States Constitution, specifically the Fourth Amendment. These rights are further secured by the Civil Rights Act of 1871, codified as

42 U.S.C. §1983 and § 1988, and by the laws and the Constitution of the State of Utah. Roy seeks compensatory and punitive damages; affirmative and equitable relief; an award of attorney fees, costs, and interest; and other and further relief as this Court deems just and equitable. This action also arises under the constitution, laws, and statutes of the State of Utah.

JURISDICTION AND VENUE

1. This action arises under the United States Constitution and federal law, particularly under the provisions of the Fourth Amendment to the Constitution of the United States, and 42 U.S.C. §§ 1983 and 1988.

2. This action seeks redress for violations of the civil rights laws of the United States, and jurisdiction is therefore invoked pursuant to 28 U.S.C. § 1343 and 42 U.S.C. § 1983.

3. The claims made in this Complaint occurred and arose in the State of Utah, in this District, and in the Central Division. Venue is therefore proper under 28 U.S.C. § 1391.

4. Plaintiff is seeking damages pursuant to the claims for relief specified below in amounts to be proved at trial.

5. This Court has authority to award costs and attorney fees pursuant to 42 U.S.C. §1988, and pursuant to the Court's inherent power under State law.

6. This action also seeks redress for violations of Plaintiff's constitutional rights secured by the Utah Constitution. This Court further has pendent jurisdiction over any and all State claims.

PARTIES

7. Plaintiff **Michael Anthony Roy** ("Roy") is a citizen of the United States of America and was at various times a resident of Utah County, State of Utah.

8. Defendant **Sgt. D. Howell** ("Howell") was at all relevant times herein an officer with Utah County Sheriff's Office, a department of Utah County, operating in the course and scope of his employment, and under the color and guise of the laws of the State of Utah.

9. Defendant **Detective S. Lott** ("Lott") was at all relevant times herein a detective with American Fork Police Department, a department of American Fork, operating in the course and scope of his employment, and under the color and guise of the laws of the State of Utah.

10. Defendant **Officer Z. Robinson** ("Robinson") was at all relevant times herein an officer with Spanish Fork Police Department, a department of Spanish Fork City, operating in the course and scope of his employment, and under the color and guise of the laws of the State of Utah.

11. Defendant **Officer B. Johnson** ("Johnson") was at all relevant times herein an officer with Spanish Fork Police Department, a department of Spanish Fork City,

operating in the course and scope of his employment, and under the color and guise of the laws of the State of Utah.

12. Defendants **John & Jane Does 1-10** ("Does") were each at all relevant times herein an officer with American Fork Police Department, a department of American Fork, operating in the course and scope of his/her employment, and under the color and guise of the laws of the State of Utah.

13. Defendant **American Fork** is a political subdivision of the State of Utah. American Fork has a law enforcement branch known as the **American Fork Police Department ("AFPD")** which is authorized to operate by American Fork and the State of Utah. American Fork funds and supervises the AFPD and is legally responsible for the acts of its employee officers that are within the course and scope of their employment. American Fork, through the actions of AFPD Officer Lott and Does 1-10, is a "person" within the meaning of 42 U.S.C. § 1983. Officer Lott and Does 1-10 were at all times state actors.

14. Defendant **Utah County** is a political subdivision of the State of Utah. Utah County has a law enforcement branch known as the **Utah County Sheriff's Office ("UCSO")** which is authorized to operate by Utah County and the State of Utah. Utah County funds and supervises the UCSO and is legally responsible for the acts of its employee officers that are within the course and scope of their employment. Utah County,

through the actions of UCSO Officer Howell and Does 1-10, is a “person” within the meaning of 42 U.S.C. § 1983. Officer Howell and Does 1-10 were at all times state actors.

15. Defendant **Spanish Fork City** is a political subdivision of the State of Utah. Spanish Fork has a law enforcement branch known as the **Spanish Fork Police Department (“SFPD”)** which is authorized to operate by Spanish Fork and the State of Utah. Spanish Fork funds and supervises the SFPD and is legally responsible for the acts of its employee officers that are within the course and scope of their employment. Spanish Fork, through the actions of SFPD Officer Robinson and Does 1-10, is a “person” within the meaning of 42 U.S.C. § 1983. Officer Robinson and Does 1-10 were at all times state actors.

FACTS

1. The incident in question occurred at approximately 5:00 p.m. on January 30, 2019, at a gas station at 500 North State Street in Orem, Utah.

2. Roy had stopped to put gas in his vehicle.

3. The day before, on January 29, 2019, Roy had been apprehended by American Fork Police Department officers based on a minor shoplifting charge at a Home Depot in American Fork. The crime was a felony offense. *See*, Exhibit 1, “Investigative Report,” p. 2.

4. While in custody, Roy was met by Lott. *Id.*

5. Lott offered Roy a deal to work off the felony charges by becoming a confidential informant for the Utah County Major Crimes Unit (UCMC). *Id.* at 3.

6. Roy accepted the deal and was released from custody that same day. *Id.*

7. The next day, January 30, 2019, officers received information about a wanted individual named Michael Schwabland. *Id.*

8. He was considered violent and had made threats to shoot at officers. UCMC officers had been actively looking for him. *Id.*

9. The information about Schwabland came from an informant working with Howell. The informant was with Schwabland. *Id.*

10. With the information from the informant, Howell, Lott and other UCMC officers created a plan to take Schwabland into custody. *Id.*

11. The plan involved UCMC plain clothes officers, unmarked vehicles, uniformed officers, marked vehicles and an airplane to follow Schwabland in the event he was able to evade capture. *Id.*

12. The plan was to pin Schwabland's vehicle in with police vehicles, stopping any chance of escape, and to call the suspect out of the vehicle.

13. There was to be no direct engagement with Schwabland until he was out of the vehicle, at which point the officers would engage him and place him under arrest. *Id.*

14. The suspect vehicle stopped at a gas station at 500 North State Street in Orem, Utah. *Id.*

15. Engaging the plan, Howell brought his vehicle to a stop behind the suspect vehicle. Lott followed suit, bringing his vehicle to a stop in front of the suspect vehicle. Other vehicles surrounded the suspect vehicle. *Id.*

16. However, Howell and Lott, for some unknown reason and without consultation with the other officers, decided not to follow the agreed upon plan. *Id.*

17. Rather than call out the suspect as had been planned, Lott, with police identification showing and his gun drawn, moved to the driver's side. *Id.*

18. Lott came to the door with his gun out, pointing it at the person he thought was going to be Schwabland. *Id.*

19. To Lott's surprise, the driver was not Schwabland, it was Michael Roy with whom he had negotiated the day before. *Id.*

20. Lott gave Roy a command to show his hands. *Id.*

21. Roy complied with Lott's commands.

22. Lott knew from that moment, at the very beginning of the raid, that the person being confronted was Michael Roy, not Michael Schwabland. *Id.*

23. Even though Lott knew they were dealing with the wrong person, he said nothing to his fellow UCMC officers. *Id.*

24. At the same time as Lott aimed his gun at Roy, Howell also rushed to the driver's side door armed with an MP-5 assault rifle. *Id.*

25. All the officers were yelling confusing and inconsistent commands at Roy telling him to show his hands and, at the same time, to get out of the vehicle. *Id.*

26. Lott did not tell Howell or any of the other officers that this was not Schwabland or that Roy was a UCMC confidential informant. *Id.* at 3-4.

27. Lott opened the driver's side door and swiped a closed, folding knife from Roy's lap. *Id.* at 3.

28. Lott and Howell continued to shout at Roy, telling him to both show his hands and to get out of the vehicle. *Id.*

29. Because Roy's seat belt was buckled, he had to choose whether to drop his hands and unbuckle his seat belt so he could exit the vehicle or continue to show his hands as he had been doing. *Id.*

30. Roy was worried that if he dropped his hands to undo the seat belt, the officers would misunderstand what he was doing and might possibly shoot him. *Id.*

31. Roy, immediately recognized Lott, asked him what he was doing and tried to tell him over and over again that he was Michael Roy, the confidential informant with whom he had made an agreement only one day before. *Id.* at 5.

32. Although Lott knew for certain that it was Roy in the driver's seat and not Schwabland, he never said anything to Howell or the other officers, thus allowing them to continue their assault and beating. *Id.* at 3-4.

33. Howell was trying to pull the suspect from the cab of the vehicle and, in doing so, tore Roy's shirt. *Id.* at 3.

34. Lott determined Roy was still buckled in with his seat belt, so he reached in and released the seat belt, allowing officers to pull Roy from the vehicle and force him to the ground. *Id.*

35. While on the ground, Howell hit Roy in the head with the "fore end and magazine" of his MP-5 rifle using it as a "compliance tool" in order to get Roy on the ground and to keep him there. *Id.* at 3-4.

36. Because of Howell's assault, Roy suffered major contusions on his head and cuts and bruises on his shoulders, neck and the sides of his body. *Id.* at 5.

37. According to Howell, once Roy was on the ground, multiple officers then struck and kicked Roy on the shoulders and arms until he was handcuffed. *Id.* at 4.

38. Officer Robinson arrived to see Roy handcuffed and “in a prone position on the ground” surrounded by officers. *Id.* at 4.

39. Nevertheless, Officer Robinson deployed his Taser as a “dry stun” gun to Roy’s leg to keep him from “kicking his legs.” *Id.*

40. Detective Johnson also recognized that the target suspect was not Michael Schwabland but was Michael Roy. *Id.*

41. Johnson knew Roy through prior dealings with him. Like Detective Lott, he did not say anything to the other officers. *Id.*

42. UCMC Field Director, Lt. Dennis Harris, arrived at the scene and met with Michael Roy.

43. Lt. Harris learned that Roy had been mistaken for someone else and had been seriously injured by Howell and Robinson. *Id.*

44. Lt. Harris offered Roy, as an informant for UCMC, \$2,000 following his first 1 oz. purchase of narcotics. *Id.*

45. Lt. Harris’s incident report stated clearly that he met with Roy and made the offer of the \$2,000. *Id.*

46. Lt. Harris offered the \$2,000 as “hush money” to fix the mix-up in identity.

47. Also, Harris offered to pay all of Roy's medical bills from the assault.

Id. at 6.

48. On the day of the incident, when Roy was finally released, he was able to go to Mountain View Hospital ER in Payson, Utah where doctors checked him and placed four staples in his head to close the gaping wound caused by Howell bashing him with his MP-5. *Id.* at 5. *See*, Exhibit 2, Photographs.

49. He was also treated for a concussion and released. *Id.* at 6.

50. Officer Lott gave Roy the \$2,000, on February 7, 2019, at the American Fork Utah Courthouse.

51. Notwithstanding Lt. Harris's promise that all of Roy's medical bills would be paid, none of Roy's medical bills were ever paid UCMC. *Id.* at 7.

52. There has been no subsequent effort by UCMC officers, Lt. Harris or the UCSO to reach out to Roy to keep this promise. *Id.*

53. In his use of force report, Howell wrote, "I then struck him [Roy] on the shoulders with the fore end and magazine of my MP5. The magazine caught the side of his head causing a small bleeding cut. He then collapsed to the ground." *Id.* at 8.

54. A Use of Force Board was convened to investigate Howell and the events surrounding the UCMC police raid on January 30, 2019. *Id.* at 7-8.

55. Members of that Board included Lt. Erik Knutzen, Utah County Sherriff's Office Detectives Lieutenant, and Chief Mike Brower, Chief Deputy UCSO Enforcement Division. *Id.*

56. The Use of Force Board concluded, "During the investigation of this incident and interviewing some of the witness officers one thing became perfectly clear. Some witnesses were not telling the whole story in terms of what they observed." *Id.* at 8.

57. Lott admitted he knew the driver of the vehicle was not Michael Schwabland, the target of the action. *Id.*

58. The moment he stepped to the door of the vehicle, Lott knew it was Michael Roy and admitted this to the Board. *Id.*

59. The Board noted that Lott "didn't do anything to stop the beating/arrest of Roy." *Id.*

60. Lott admitted to the Use of Force Board that he allowed the "beating/arrest of Roy" to continue even though he clearly knew that they targeted and apprehended the wrong person. *Id.*

61. Johnson also knew that the group had targeted and apprehended the wrong person, but he did not say anything, allowing the beating to continue. *Id.* at 4.

62. The Board stated, "There was a lack of investigation by UCMC or UCSO administration into the event." *Id.* at 8.

63. In its final conclusion, the Board “unanimously agreed that Sgt. Doug Howell was outside of Department Policy and the force used was not reasonable or necessary.” *Id.*

64. Michael Roy has suffered extreme injuries as a result of the officers’ recklessness in beating him with the fore end of a rifle and unlawful tasing.

65. The Defendants’ actions were unlawful and in violation of Michael Roy’s Constitutional rights.

FIRST CAUSE OF ACTION

~ Excessive Force ~

Violation of Fourth and Fourteenth Amendments against Defendants Howell, Lott and Robinson in Their Individual and Representative Capacities

Cognizable Under 42 U.S.C. §1983.

66. Plaintiff incorporates by reference all other allegations herein.

67. An individual being detained must show that the force used by police officers against him is “objectively unreasonable” in order to argue that such force was excessive and in violation of the Fourth Amendment’s proscription against unreasonable seizures and/or the Fourteenth Amendment’s due process clause. The U.S. Supreme Court has held:

The question before us is whether, to prove an excessive force claim, a pretrial detainee must show that the officers were *subjectively* aware that their use of force was unreasonable, or only that the officers’ use of that force

was *objectively* unreasonable. We conclude the latter standard is the correct one.

Kingsley v. Hendrickson, 135 S. Ct. 2466, 2469 (2015) (italics in original).

68. Officer Howell and Lott were *objectively unreasonable* in first approaching and threatening Roy with lethal force by pointing their guns at him. This is especially true as the approved plan was to engage the suspect once he left the vehicle. All the Officers agreed that would be a safer procedure.

69. Roy was not an immediate threat to any of the Officers.

70. Roy never verbally or physically threatened any of the Officers.

71. Roy had no weapon. He had only a small knife on his lap which Lott had already removed at the beginning of the attack.

72. Roy was being compliant. He showed Howell and Lott his hands when ordered to do so.

73. Roy was given confusing and blatantly contradicting orders to simultaneously a) show his hands; and, b) exit the vehicle.

74. Roy could not comply simultaneously with both of these orders because he had his seat belt buckled.

75. Roy was afraid that if he lowered his hands to unbuckle his seat belt, the Officers might think that he was reaching for a weapon, and they might shoot him.

76. Roy could not understand why he was being assaulted by so many police officers. He was surprised and frustrated.

77. Roy had committed no crime.

78. Roy did not know that he was being mistaken for another individual, Michael Schwabland, who was the real target of the raid.

79. Howell's use of the "fore end and magazine" of his rifle was unnecessary as a "compliance tool."

80. The rifle was not a reasonable level of force taking into consideration the situation which the officers were facing at that precise moment.

81. Howell had immediately available to him multiple, more reasonable options.

82. Robinson's use of a taser to bring Roy into "compliance" was unnecessary.

83. Roy was subdued, in a prone position on the ground, and was surrounded by multiple officers.

84. By making the impromptu decision to break from their original plan and aggressively approach the driver's side of the vehicle, Lott and Howell unreasonably escalated what would likely have been an easily managed situation.

85. Defendants Lott, Howell and Johnson escalated the situation by:

- a. Threatening Roy with lethal force,
- b. Boxing him in,
- c. Not explaining what they were doing,

- d.** Giving him confusing and contradictory commands,
- e.** Not standing down when they realized they were arresting the wrong person,
- f.** Assaulting and beating Roy with the fore end of a rifle,
- g.** Using a Taser on him unnecessarily,
- h.** Multiple officers physically abusing, kicking and hitting Roy's shoulders and body.

86. UCMC Officers Howell, Lott, Robinson and Johnson as well as the other officers of the UCMC escalated the raid on Roy.

87. UCMC themselves created the events which they then used as an excuse to justify the use of unreasonable force.

88. The Tenth Circuit has clearly established that the use of excessive force is unconstitutional when such force is applied after “deliberately or recklessly manufacturing the need to do so.” *Bond v. City of Tahleque, Oklahoma* WL 7038287 (10th Cir. 2020) (quoting *Allen v. Muskogee*, 119 F.3d 837, 839, 841 (10th Cir. 1997)).

89. UCMC Officers Howell, Lott, Robinson and Johnson were each operating at all times in the course and scope of their employment with their individual police departments as well as acting at all times under the auspices and guise of the Utah County Sheriff's Office, a department of Utah County.

90. At the time of Howell's use of force against Roy, as described herein, Howell was in no danger from Roy.

91. At the time of Robinson’s use of force against Roy, as described herein, Robinson was in no danger from Roy.

92. The use of force by Howell and Robinson against Roy was completely unreasonable.

93. The use of force by Howell and Robinson against Roy was reckless, excessive, unnecessary, improper and dangerous simply because Roy was allegedly non-compliant.

94. In 2019, it was well established by the Utah Courts:

The prohibition against unnecessary rigor clearly includes intentional physical abuse of persons under arrest or imprisoned. “[A]lthough police may use ‘reasonable and necessary force’ in making an arrest, the prohibition against unnecessary rigor does not allow police officers to commit assault and battery on a criminal suspect.”

Dexter v. Bosko, 2008 UT 29, ¶ 16, 184 P.3d, 596 (Utah 2008) (citations omitted). Force used by Howell and Robinson in this case was punitive and constituted assault and battery. Any reasonable officer on the scene would have known that attacking Roy with the fore end of a gun and firing a Taser when Roy was obviously subdued and surrounded by multiple other law enforcement officers constituted a serious, outrageous and unnecessary use of force. Such force was violative of Roy’s rights guaranteed by the Fourth and Fourteenth Amendments to the U.S. Constitution and by the Utah Constitution.

95. Howell and Robinson’s use of unreasonable and excessive force on Roy directly and proximately caused his injuries and damages as set herein.

96. The conduct of these Defendants warrants the imposition of punitive damages as may be allowed by law.

97. Defendant Officers are not entitled to qualified immunity based on their unlawful and illegal use of excessive force.

SECOND CAUSE OF ACTION

~ Unlawful Seizure ~

Violation of the Fourth Amendment, against Defendants Lott, Howell, Robinson and Johnson, in Their Individual and Representative Capacities

Cognizable Under 42 U.S.C. §1983.

98. Plaintiff incorporates by reference all other allegations herein.

99. A warrantless arrest is permissible only when an officer “has probable cause to believe that a person has committed a crime.” *Cortez v. McCauley*, 478 F.3d 1108, 1115 (10th Cir. 2007) (quoting *Romero v. Fay* 45 F.3d 1472, 1476 (10th Cir. 1995)).

100. For an officer to seize an individual, the officer “***must have a particularized and objective basis*** for suspecting the particular person ... of criminal activity.” *Oliver v. Woods*, 209 F.3d 1179, 1186 (10th Cir. 2000) (emphasis added).

101. The Tenth Circuit states that a reasonably “honest mistake” in the arrest of an individual based on mistaken identity is not a violation under §1983. *Glass v. Pfeffer*, 657 F.2d 252, 256 (10th Cir. 1981).

102. An “honest mistake” is not the case here. There was clearly no mistaken identity.

103. Detective Lott admitted that he knew for certain that the UCMC officers were attempting to arrest the wrong person from the moment he walked to the driver's side of Roy's vehicle.

104. When Lott reached the driver's side of the vehicle and pointed his gun at the driver, he knew *immediately* that the driver of the vehicle was Michael Roy, not Michael Schwabland, the real object of the raid.

105. Nevertheless, even though he knew he was dealing with the wrong person, Lott opened the vehicle door and, with Howell, proceeded to aggressively seize Roy and pull him out of the vehicle.

106. Lott pushed Roy down while Howell brutally and unreasonably struck Roy in the head, shoulders and neck with the fore end of his rifle.

107. Lott knew that he and Howell were using excessive force against and seizing the wrong person.

108. Lott chose not to say anything to his fellow officers about the brutal "assault/beating" they were applying against a person who was not the target of their search and seizure operation.

109. Detective Johnson also recognized that the person UCMC officers were trying to arrest was actually Michael Roy and not the target, Michael Schwabland. Nevertheless, like Lott, Detective Johnson said nothing and allowed the excessive use of force against Michael Roy to continue.

110. The conduct of these Defendants warrants the imposition of punitive damages as may be allowed by law.

111. Defendants are not entitled to qualified immunity based on their unilateral and illegal seizure of Roy.

THIRD CAUSE OF ACTION

~Failure to Intervene~

Violation of the Fourth Amendment against Defendants Lott and Johnson in their Individual and Representative Capacities

Cognizable under 42 U.S.C. §1983

112. Plaintiff incorporates by reference all other allegations herein.

113. The Tenth Circuit has clearly established that officers who aren't directly involved in the use of excessive force can, nevertheless, still be liable. The Court stated:

It is not necessary that a police officer actually participate in the use of excessive force in order to be held liable under section 1983. Rather, an officer who is present at the scene and who fails to take reasonable steps to protect the victim of another officer's use of excessive force, can be held liable for his nonfeasance.

Mascorro v. Billings, 656 F.3d 1198, 1204, fn. 5 (10th Cir. 2011).

114. Detectives Lott and Johnson are also responsible for the claims as stated herein because they each had a duty to take reasonable steps to protect Roy from the use of excessive force by Howell and Robinson, often referred to as a "duty to intervene."

115. Defendants Lott and Johnson failed to take any steps to protect Roy from Howell and Robinson even when they admittedly knew well before any force was used that they had seized the wrong person.

116. Detectives Lott and Johnson could have stopped the severe use of force that Howell and Robinson applied to Roy causing his damages.

117. Defendants could have simply told their colleague officers at the very beginning of the raid that “Hey, we have the wrong guy. This is not Michael Schwabland. Let’s stand down.” But they didn’t do that. Even while Howell and Robinson were brutally assaulting and arresting Roy, the wrong guy, they stood by and chose to say nothing.

118. The conduct of these Defendants warrants the imposition of punitive damages as may be allowed by law.

119. As a direct and proximate result of the Defendants’ violations, Roy suffered a concussion, lacerations, bruises, and a severe beating by officers.

FOURTH CAUSE OF ACTION

~ Outrageous Conduct that Shocks the Conscience ~

Violations of the Fourteenth Amendment Against Defendants Howell, Robinson, Lott and Johnson

Cognizable Under 42 U.S.C. §1983.

120. Plaintiff incorporates by reference all other allegations herein.

121. The actions of Defendants Howell, Robinson, Lott and Johnson were outrageous and conscience shocking for at least the following reasons:

- a. Roy had not threatened officers;
- b. Roy had no weapon, except a small knife that was visible on his lap;
- c. Roy made every possible effort to comply with Officers' commands;
- d. Roy was not an immediate threat to officers;
- e. Roy was not an immediate threat to any individual;
- f. Roy was never told he was under arrest;
- g. By not standing down when they recognized Roy;
- h. By beating Roy with the fore end of a rifle;
- i. Tasing Roy unnecessarily;
- j. By attacking Roy while he was already down.

122. The actions of the Defendants were outrageous and conscience shocking. Said actions, as set forth herein, constitute a substantive due process violation of the Fourteenth Amendment in that the Defendants' actions "demonstrate[d] a degree of outrageousness and magnitude of potential harm that is truly conscience shocking." *Uhlrig v. Harder*, 64 F.3d 567,574 (10th Cir. 1995).

123. To show a defendant's conduct is conscience shocking, a plaintiff must prove a government actor arbitrarily abused his authority or "employ[ed] it as an instrument of oppression." *Williams v. Barney*, 519 F.3d 1216, 1220 (10th Cir. 2008) (internal punctuation omitted).

124. The Tenth Circuit has held that “[o]utrageous government conduct during a criminal investigation may constitute a violation of substantive due process rights.” *Romero v. United States*, 658 Fed.Appx. 376, 381 (10th Cir. 2016) (citing *United States v. Mosely*, 965 F.2d 906, 908-09 (10th Cir 1992)) (internal punctuation omitted).

125. Outrageous conduct occurred in this interaction. The officers perpetrated an assault and battery on Roy, severely injuring him in a way that was egregious and conscience shocking. This is especially so when Officer Lott knew from the outset of their operation and, later, Officer Johnson knew when he arrived at the scene that they were assaulting, beating, tasing and arresting the wrong person.

126. The actions of Defendants Howell, Robinson, Lott and Johnson violated Roy’s Fourteenth Amendment right to due process of law.

127. Conduct was egregious to the point that Sergeant Howell was reprimanded for it.

128. Roy has been damaged as set forth in the First Cause of Action, which is incorporated herein by reference.

129. The actions of these Defendants warrants the imposition of punitive damages as may be allowed by law.

130. Prior to the encounter described herein, the UCMC had a clear plan of attack. They were going to call the suspected target, Michael Schwabland, from the suspected vehicle before taking any further, more aggressive action.

131. For no apparent reason, and without consulting with the other involved officers, Howell and Lott decided to improvise.

132. Both officers aggressively confronted Roy with deadly force, pointing their guns at him through the driver's side window of his vehicle.

133. UCMC demanded that Roy show his hands. Roy complied.

134. UCMC demanded that Roy exit the vehicle.

135. He was wearing a seat belt.

136. While demanding he exit the vehicle, the Officers also wanted him to keep his hands visible. Roy could not possibly do both. These commands were confusing and conflicting.

137. If he dropped his hands to his side, Roy was worried that the Officers might suspect he had a weapon and would shoot. The Officers apparently interpreted this confusion as resisting their orders.

138. Roy was in the wrong place at the wrong time putting gas in his vehicle.

FIFTH CAUSE OF ACTION

~ Failure to Train and Unconstitutional Practices and Procedures ~

Against Utah County, American Fork City and Spanish Fork City

Cognizable under 42 U.S.C. § 1983

139. Plaintiff incorporates by reference all other allegations herein.

140. On January 30, 2019, as described above, UCSO, American Fork Police Department and Spanish Fork Police Department, acting vicariously through their employee officers and under the auspices of the UCMC, perpetrated an outrageous assault and beating of Roy.

141. The UCMC officers made four critical errors during their operation, which, in the totality of the circumstances, violated Roy's civil rights:

a. Officers Howell and Lott improvised and went "off script" without notifying any of the other officers of what they were doing. They aggressively and provocatively led with deadly force which recklessly escalated a situation that did not call for use of deadly force, tasing or physical assault. They "recklessly and deliberately created the circumstances necessitating deadly force." *Bond*, 981 F.3d at 819. Even though they did not use their handguns, they had drawn them and pointed them at Roy, even after they knew they had seized the wrong person.

b. Officers Lott and Johnson knew from very early in the raid that the individual in the vehicle was not Schwabland, as anticipated, but Michael Roy. They could have avoided the assault and beating of Roy, which caused grave injury, if they had immediately alerted other officers that they had the wrong person.

c. Sergeant Howell unreasonably used the "fore end and magazine" of his rifle to hit Roy on the head, shoulders and neck as a "compliance tool" as Roy was allegedly resisting arrest. In their review, the Use of Force Board clearly pointed out that Howell's use of force was against UCSO departmental policy.

d. Officer Robinson used a taser to "bring Roy into compliance" because he was moving his legs, resulting in serious burns. Roy, as Robinson acknowledged to the Use of Force Board, was already subdued, in a prone position on the ground, and was surrounded by multiple officers. He was not in a position to resist against Officer Robinson. Deployment of the taser and the resulting burns to Roy were grossly unnecessary.

e. The cumulative nature of these errors demonstrates a lack of training and supervision of the UCSO, AFPD and SFPD in preparing their officers and deputies to fulfill their responsibilities and duties under the law.

f. The UCSO, AFPD and SFPD had a duty to fully and adequately train and supervise their deputies and officers to adhere to the proscriptions against excessive use of force in accordance with clearly established law under the Fourth and Fourteenth Amendments of the United States Constitution as well as the Utah Constitution.

g. The UCSO, AFPD and SFPD knowingly and recklessly failed to adequately train and/or supervise their officers and deputies to adhere to the proscriptions against excessive force as clearly established under the Fourth and Fourteenth Amendments of the United States Constitution as well as the Utah Constitution.

h. The failure of the UCSO, AFPD and SFPD to train and supervise their officers and deputies to adhere to these proscriptions demonstrates a reckless indifference to the rights of the people they claim to be protecting, including Michael Roy and his rights.

i. The failure of UCSO, AFPD and SFPD to fully and adequately train and supervise their officers and deputies and/or enforce their policies, practices and/or procedures, if they existed, proximately caused Roy's damages.

j. The unreasonable use of excessive force perpetrated upon Roy as described herein reflects practices or customs informally and customarily condoned by UCSO, AFPD and SFPD, which practices and customs consist of allowing officers and deputies to use force against persons for whom they have no probable cause to believe are committing crimes, especially when they know they are using force against the wrong person, without any resulting disciplinary action.

142. Utah County, American Fork City and Spanish Fork City are wholly responsible for the functioning and funding of the UCSO, the AFPD and the SFPD, respectively. The entities are fully aware of the facts of this incident as evidenced by the

Utah County Attorney's Office Investigation. The only action taken to address the matter was against Sergeant Howell.

143. Utah County, American Fork City and Spanish Fork City are also liable to Roy for the excessive force and illegal seizure used against him.

144. Utah County, through its UCSO Department, is the main participant and directing authority of the UCMC. The UCMC appears to operate outside of any specific jurisdictional responsibility except for its reporting mechanisms which refer any action back to a board consisting of Chiefs of Police of the constituent law enforcement departments and the Utah County Sherriff. Nevertheless, each of the operational jurisdictions which participate in the UCMC are law enforcement agency departments authorized by and functioning under municipalities within Utah County. As such, Utah County, also bears overall liability for the actions of all the officers assigned to the UCMC when those officers are acting as members of the UCMC and involved in UCMC sponsored operations. Utah County has the primary responsibility to assure that officers of the UCMC are properly trained and supervised, and aware of proper practices, policies and procedures in order to clearly avoid proscribed activities which violate the civil rights of those they are obligated to protect.

145. The conduct of these Defendants warrants the imposition of punitive damages as may be allowed by law.

SIXTH CAUSE OF ACTION

~ State Constitutional Claims ~

Violation of the Utah Constitution against Officers 1-35 in their individual capacities.

Cognizable under Article I, Sections 7, 9 and 14 of the Utah Constitution.

146. Plaintiff incorporates all other allegations herein.

147. Article I of the Utah Constitution, similar to the U.S. Constitution, provides protection of basic rights for its citizens, as follows:

- a.** Against illegal seizure – Section 7
- b.** Against excessive force and unnecessary rigor – Section 9
- c.** Against denial of due process – Section 14

148. Officers Lott, Howell, Robinson and Johnson, as explained above, flagrantly violated Roy's Utah Constitutional rights when they illegally seized him.

149. Officers Lott, Howell, Robinson and Johnson, as explained above, flagrantly violated Roy's Utah Constitutional rights when they used excessive force in attacking him, hitting him with the butt of a gun, kicking him and tasing him even after they knew he was not the individual they were seeking to arrest.

150. Officers Lott, Howell, Robinson and Johnson as explained above, flagrantly violated Roy's Utah Constitutional rights by denying them due process.

151. Roy has been damaged as set forth in Claim 1, which is incorporated herein by reference.

152. No remedy is available for the illegal seizure, use of excessive force and unconstitutional search and seizure brought upon Roy by the Officers.

153. The conduct of Officers Lott, Howell, Robinson and Johnson warrants the imposition of punitive damages as may be allowed by law.

INJURIES AND DAMAGES

154. The conduct of Officers Lott, Howell, Robinson and Johnson warrants the imposition of punitive damages as may be allowed by law.

155. Roy was unreasonably and unnecessarily assaulted, beaten, tased and arrested at the hands of Sergeant Howell and Officer Robinson, with Detectives Lott and Johnson refusing to intervene.

156. Because of these unreasonable and unnecessary actions by the four Officers, Roy was severely injured with cranial lacerations, a concussion, severe cuts and bruises on his shoulders, neck and torso and burns on his legs.

157. Roy was unnecessarily and unreasonably required to go to the Emergency Room at Mountain View Hospital to receive medical care, with the associated costs and obligations.

158. Additional medical care has been necessary, with the associated costs and obligations.

159. These damages are the proximate cause of actions of Officers Howell, Lott, Johnson and Robinson as well as Utah County, American Fork City and Spanish Fork City.

160. We incorporate herein by reference other paragraphs relating to damages.

JURY DEMAND

Plaintiff demands a trial by jury on all Causes of Action included herein.

REQUESTS FOR RELIEF

WHEREFORE, Plaintiff prays judgment against Defendants as follows:

- 1.** For general and compensatory damages in an amount to be determined at trial.
- 2.** For special damages as are shown at trial;
- 3.** For punitive damages against Defendants as may be allowed by law and as are shown at trial;
- 4.** For pre-judgment interest on the damages assessed by the verdict of the jury, as allowed by law;
- 5.** For Plaintiff's costs and reasonable attorney fees incurred herein, pursuant to 42 U.S.C. §1988, and as may be available under state law; and,
- 6.** For such other and further relief as the Court deems just and proper.

DATED this 24th day of June, 2022.

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